

HOUSE No. 1359

The Commonwealth of Massachusetts

PRESENTED BY:

Marjorie C. Decker

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act relative to capping the price of epinephrine.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Marjorie C. Decker</i>	<i>25th Middlesex</i>	<i>1/16/2025</i>
<i>Patrick Joseph Kearney</i>	<i>4th Plymouth</i>	<i>5/8/2025</i>
<i>Estela A. Reyes</i>	<i>4th Essex</i>	<i>5/28/2025</i>

HOUSE No. 1359

By Representative Decker of Cambridge, a petition (accompanied by bill, House, No. 1359) of Marjorie C. Decker relative to the price of epinephrine. Health Care Financing.

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act relative to capping the price of epinephrine.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Subsection (b) of section 26 of chapter 342 of the Acts of 2024, is hereby
2 amended by inserting after the word “members”, the following words:- ; and the following acute
3 condition (i) anaphylaxis.

4 SECTION 2. Subsection (c) of said section 26 of said chapter 342, as so appearing, is
5 hereby amended by inserting after the word “diabetes”, the following words:- and epinephrine
6 delivered via an autoinjector as the drug used to treat anaphylaxis.

7 SECTION 3. Said subsection (c) of said section 26 of said chapter 342, as so appearing,
8 is hereby further amended by inserting after the word “condition”, the following words:- or acute
9 condition.

10 SECTION 4. Said clause (v) of said subsection (c) of said section 26 of said chapter 342,
11 as so appearing, is hereby further amended by inserting after the word “condition”, the following
12 words:- or acute condition.

SECTION 5. Subsection (d) of said section 26 of said chapter 342, as so appearing, is hereby amended by adding the following sentence:- Coverage for 1 brand name of epinephrine delivered via an autoinjector or 1 generic brand of epinephrine delivered via an autoinjector shall not be subject to any deductible or co-insurance and any co-payment shall not exceed \$60 for a two-pack of epinephrine autoinjectors.

SECTION 6. Subsection (b) of section 28 of chapter 342 of the Acts of 2024, is hereby amended by inserting after the word “enrollees”, the following words:- ; and the following acute condition (i) anaphylaxis.

SECTION 7. Subsection (c) of said section 28 of said chapter 342, as so appearing, is hereby amended by inserting after the word “diabetes”, the following words:- and epinephrine delivered via an autoinjector as the drug used to treat anaphylaxis.

SECTION 8. Said subsection (c) of said section 28 of said chapter 342, as so appearing, is hereby further amended by inserting after the word “condition”, the following words:- or acute condition.

SECTION 9. Said clause (v) of said subsection (c) of said section 28 of said chapter 342, as so appearing, is hereby further amended by inserting after the word “condition”, the following words:- or acute condition.

SECTION 10. Subsection (d) of said section 28 of said chapter 342, as so appearing, is hereby amended by adding the following sentence:- Coverage for 1 brand name of epinephrine delivered via an autoinjector or 1 generic brand of epinephrine delivered via an autoinjector shall not be subject to any deductible or co-insurance and any co-payment shall not exceed \$60 for a two-pack of epinephrine autoinjectors.

SECTION 11. Subsection (b) of section 31 of chapter 342 of the Acts of 2024, is hereby amended by inserting after the word “enrollees”, the following words:- ; and the following acute condition (i) anaphylaxis.

SECTION 12. Subsection (c) of said section 31 of said chapter 342, as so appearing, is hereby amended by inserting after the word “diabetes”, the following words:- and epinephrine delivered via an autoinjector as the drug used to treat anaphylaxis.

SECTION 13. Said subsection (c) of said section 31 of said chapter 342, as so appearing, is hereby further amended by inserting after the word “condition”, the following words:- or acute condition.

SECTION 14. Said clause (v) of said subsection (c) of said section 31 of said chapter 342, as so appearing, is hereby further amended by inserting after the word “condition”, the following words:- or acute condition.

SECTION 15. Subsection (d) of said section 31 of said chapter 342, as so appearing, is hereby amended by adding the following sentence:- Coverage for 1 brand name of epinephrine delivered via an autoinjector or 1 generic brand of epinephrine delivered via an autoinjector shall not be subject to any deductible or co-insurance and any co-payment shall not exceed \$60 for a two-pack of epinephrine autoinjectors.

SECTION 16. Subsection (b) of section 33 of chapter 342 of the Acts of 2024, is hereby amended by inserting after the word “enrollees”, the following words:- ; and the following acute condition (i) anaphylaxis.

SECTION 17. Subsection (c) of said section 33 of said chapter 342, as so appearing, is hereby amended by inserting after the word “diabetes”, the following words:- and epinephrine delivered via an autoinjector as the drug used to treat anaphylaxis.

SECTION 18. Said subsection (c) of said section 33 of said chapter 342, as so appearing, is hereby further amended by inserting after the word “condition”, the following words:- or acute condition.

SECTION 19. Said clause (v) of said subsection (c) of said section 33 of said chapter 342, as so appearing, is hereby further amended by inserting after the word “condition”, the following words:- or acute condition.

SECTION 20. Subsection (d) of said section 33 of said chapter 342, as so appearing, is hereby amended by adding the following sentence:- Coverage for 1 brand name of epinephrine delivered via an autoinjector or 1 generic brand of epinephrine delivered via an autoinjector shall not be subject to any deductible or co-insurance and any co-payment shall not exceed \$60 for a two-pack of epinephrine autoinjectors.

SECTION 21. Subsection (b) of section 34 of chapter 342 of the Acts of 2024, is hereby amended by inserting after the word “enrollees”, the following words:- ; and the following acute condition (i) anaphylaxis.

SECTION 22. Subsection (c) of said section 34 of said chapter 342, as so appearing, is hereby amended by inserting after the word “diabetes”, the following words:- and epinephrine delivered via an autoinjector as the drug used to treat anaphylaxis.

75 SECTION 23. Said subsection (c) of said section 34 of said chapter 342, as so appearing,
76 is hereby further amended by inserting after the word “condition”, the following words:- or acute
77 condition.

78 SECTION 24. Said clause (v) of said subsection (c) of said section 34 of said chapter
79 342, as so appearing, is hereby further amended by inserting after the word “condition”, the
80 following words:- or acute condition.

81 SECTION 25. Subsection (d) of said section 34 of said chapter 342, as so appearing, is
82 hereby amended by adding the following sentence:- Coverage for 1 brand name of epinephrine
83 delivered via an autoinjector or 1 generic brand of epinephrine delivered via an autoinjector shall
84 not be subject to any deductible or co-insurance and any co-payment shall not exceed \$60 for a
85 two-pack of epinephrine autoinjectors.

86 SECTION 26. Subsection (b) of section 35 of chapter 342 of the Acts of 2024, is hereby
87 amended by inserting after the word “enrollees”, the following words:- ; and the following acute
88 condition (i) anaphylaxis.

89 SECTION 27. Subsection (c) of said section 35 of said chapter 342, as so appearing, is
90 hereby amended by inserting after the word “diabetes”, the following words:- and epinephrine
91 delivered via an autoinjector as the drug used to treat anaphylaxis.

92 SECTION 28. Said subsection (c) of said section 35 of said chapter 342, as so appearing,
93 is hereby further amended by inserting after the word “condition”, the following words:- or acute
94 condition.

95 SECTION 29. Said clause (v) of said subsection (c) of said section 35 of said chapter
96 342, as so appearing, is hereby further amended by inserting after the word “condition”, the
97 following words:- or acute condition.

98 SECTION 30. Subsection (d) of said section 35 of said chapter 342, as so appearing, is
99 hereby amended by adding the following sentence:- Coverage for 1 brand name of epinephrine
100 delivered via an autoinjector or 1 generic brand of epinephrine delivered via an autoinjector shall
101 not be subject to any deductible or co-insurance and any co-payment shall not exceed \$60 for a
102 two-pack of epinephrine autoinjectors.

103 SECTION 31. This act shall apply to all contracts entered into, renewed or amended on
104 or after July 1, 2026.